



SALES PARTNER AGREEMENT

Independent Sales Partner Program

This Sales Partner Agreement (the "Agreement") is entered into as of _____ (the "Effective Date") by and between Charter Oaks Assets, Inc. d/b/a Mercury Call Desk ("MCD" or "Company"), with an address at 231 E Alessandro Blvd A-208, Riverside, CA 92508, and _____ ("Sales Partner" or "Partner"). Hamilton Pinto Jr. signs for MCD as Manager and Authorized Signatory.

1. Engagement and Independent Partner Relationship

1.1 Engagement

MCD engages Partner as a commission-only independent Sales Partner to independently market approved MCD services, identify prospects, book qualified demonstrations, and, when separately authorized, conduct demonstrations and close approved deals.

1.2 Independent relationship

The Parties intend an independent-contractor relationship. Partner controls its own schedule, work location, prospecting approach, business methods, and non-competing business activity, subject to the customer-protection, brand, confidentiality, CRM, compliance, and contract rules in this Agreement.

1.3 No authority or reseller rights

Partner is not an employee, officer, agent with authority to bind MCD, joint venturer, franchisee, reseller, or owner of MCD. Nothing in this Agreement grants a franchise, exclusive territory, ownership interest, reseller status, sublicense right, or guaranteed income, customer volume, commission, or future role.

1.4 Partner responsibilities

Partner is responsible for its own taxes, insurance, equipment, internet, expenses, business operations, and filings. Partner must provide a completed official IRS Form W-9 before payout.

1.5 Non-exclusive activity

This Agreement is non-exclusive. Partner may market or sell non-competing products or services through its own business, but may not market products or services that compete with MCD or use MCD records or materials for another business.

2. Onboarding, Access, and Records

2.1 Required onboarding gate

No paperwork, no system access, and no exceptions. MCD will not countersign or enable active MiniCRM/GHL access until Partner completes:

- A complete CRM profile with verified personal email, mobile number, mailing address, and required contact information.
- Official IRS Form W-9 submission through the approved secure process.
- This Agreement.



- The Confidentiality and Intellectual Property Agreement.
- CRM training/check-in.

2.2 Records and audit trail

MCD may create a backend GHIL user and MiniCRM role to retain Partner profile, agreement, attribution, commission, and client-service records. The system of record may retain signed PDFs, agreement version, timestamps, signer IP/audit trail, countersignature, W-9, profile-completion status, certification, and related records.

2.3 Contact information and notices

During the active relationship, MCD may use a Company email for operational or internal communications. Formal legal or civil notices go to Partner's verified personal email. Partner must keep personal contact information current in the CRM.

3. Authority Levels and Deal Rules

3.1 Standard Partner

After CRM training and certification, Partner may independently prospect, use approved brand assets and collateral, explain published pricing, and book qualified demos. Partner may not change price, discount, waive setup fees, alter scope, sign customer contracts, make nonstandard promises, or bind MCD.

3.2 Advanced Partner

MCD may grant Advanced Partner or Manager authority only in a separate written approval. An Advanced Partner may run demos end-to-end, close authorized deals, and customize a customer price above MCD's confidential minimum margin floor. Any discount, setup-fee waiver, custom scope, or exception still requires explicit manager approval before contract generation.

3.3 Company control of customer agreements

All customer agreements are between the customer and MCD. MCD retains sole authority over customer contracts, billing, implementation, accounting, customer-service commitments, and Level 2 escalation.

4. Compensation

4.1 Net Commissionable Profit

Eligible compensation is based on Net Commissionable Profit, defined as collected retail revenue minus the published Partner wholesale cost and actual Stripe/payment-processing fee. Sales tax is not commissionable revenue.

4.2 Commission split

MCD retains fifty percent (50%) of Net Commissionable Profit and the CRM-credited Partner receives fifty percent (50%), subject to this Agreement, the customer remaining current, and Partner's good standing and service obligations.

4.3 Commission trigger

A commission is earned only when the applicable customer deal closes and MCD receives cleared funds. A booked demo that does not close earns no commission.



4.4 Payout timing

- New-account first-payment and setup-fee commissions are paid no later than thirty (30) days after cleared funds and completion of the applicable documented launch phase.
- Established recurring payments and unchanged renewals are paid within fifteen (15) days after cleared funds.
- A changed package, scope, price, or contract structure is treated as a new contract for commission calculation and payout timing.

4.5 Setup fees

A setup fee must first cover the customer's first-month MCD wholesale cost and applicable processor fee. Remaining setup profit is split fifty/fifty between MCD and the credited Partner. Minimum setup-profit targets before the split are:

Package	Minimum setup-profit target
Starter	\$1,000
Growth	\$1,500
Pro	\$3,000
Enterprise	\$5,000

Setup-fee waivers require explicit manager approval.

4.6 Adjustments, chargebacks, and offsets

In the event of a refund, chargeback, payment reversal, fraud, duplicate payout, or Partner negligence, Partner is responsible for its related commission portion. MCD may hold or offset future commissions as reasonably needed. MCD will provide prompt notice and calculation; Partner has ten (10) days to repay an established balance before offsetting future commission.

4.7 Commission disputes

MCD provides commission reporting through approved systems. Partner must submit a dispute in writing within thirty (30) days. CRM attribution and documented CRM notes control; MCD audits disputes in good faith.

4.8 No standard MCD-administered splits

MCD pays the CRM-credited Partner of record. Partners may make private arrangements among themselves, but no such arrangement binds MCD unless management documents another allocation in advance.

5. Leads, Attribution, and CRM Data

5.1 Company records

All leads, prospects, customers, notes, contacts, proposals, recordings, meetings, CRM records, and related information are exclusive MCD records and must remain in approved systems.

5.2 Protection rules

A cold lead is created when entered in CRM but is protected only after Partner documents two-way contact in CRM. A self-sourced referral is protected immediately upon accurate CRM entry and source documentation.



5.3 Authorized access only

Partner may work only leads available to Partner through an approved CRM assignment, OpenPool access, Shark Tank assignment, or manager instruction. Partner may not export, download, screenshot, copy, retain, use, or transfer Company records outside approved systems.

5.4 OpenPool

A cold lead with no demo booked after forty-five (45) days becomes open to all authorized Partners. The original Partner loses the lead.

5.5 Shark Tank

A lead that received contract pricing and stalled may be reassigned to top-tier closers or managers. The original Partner loses the lead.

5.6 Reassigned leads

If another Partner re-engages, rebooks, closes, and receives cleared customer payment from a reassigned lead, the new CRM-credited Partner receives the eligible compensation. A Partner has no commission claim to a deal that never closed.

5.7 House Accounts

MCD may move any account to House for client protection, noncompliance, abandonment, or operational need. Self-sourced referral attribution does not prevent MCD from reassigning servicing or protecting the customer.

6. Client Service and Residual Eligibility

6.1 Residual eligibility

Partner earns residual commissions only while the customer is current, Partner remains in good standing, and Partner documents required client service in the CRM.

6.2 Service cadence

Minimum service cadence is set out in Exhibit B. Documented meeting offers and client-declined or rescheduled meetings count as compliant service activity.

6.3 Support and escalation

Client support intake is through support@mercurycalldesk.com. MCD handles Level 1 intake; Partner handles account-facing communication within Partner's role; MCD/Hamilton handles Level 2 escalation. The standard target response time is twenty-four (24) calendar hours. Pro and Enterprise matters receive priority handling when feasible.

6.4 Servicing compliance

An unexcused failure to respond to a client and escalate the need for three (3) calendar days may justify immediate termination. Failure to attend to or confirm account health for sixty (60) days is a servicing-compliance violation; the first violation results in a warning, and the second violation in a rolling twelve-month period results in loss of the account to House.



7. Communications, Compliance, and Conduct

7.1 Approved claims

Partner must use professional, accurate, and approved positioning. Partner must not promise income, revenue, savings, compliance, staffing reduction, service level, implementation timing, customer outcome, or reseller status.

7.2 Approved channels

Partner may use personal social accounts and personal devices for independent prospecting in good faith, but meaningful contact must be logged in CRM. Customer or prospect email must be sent through the MCD CRM or Company-email system. MCD has no active Partner phone or SMS program unless MCD approves one in writing.

7.3 DNC and opt-outs

Any DNC, opt-out, unsubscribe, or "stop" request received by any channel must be recorded immediately. DNC requires a total sales and marketing blackout across calls, SMS, sales/marketing email, and social DMs. Transactional billing, support, security, and system-outage messages may continue only where permitted.

7.4 Legal compliance

Partner must comply with applicable law and MCD's approved compliance processes. B2B status does not eliminate applicable DNC, privacy, recording-consent, disclosure, platform, or state-law obligations.

7.5 Immediate termination grounds

Immediate termination may result from fraud, customer theft, misrepresentation, compliance violations, DNC or opt-out failure, data export or misuse, harassment, or brand misuse.

8. Term, Departure, and Retirement

8.1 Termination

This Agreement begins on the Effective Date and continues until terminated. MCD may terminate without cause, subject to applicable law. Partner is encouraged, but not required, to provide fourteen (14) days' notice before voluntary departure.

8.2 Separation

On separation, active CRM access and Company email terminate immediately. Accounts remain Company records and transfer to House unless MCD grants a good-standing former Partner a restricted role for selected retained clients.

8.3 Good-standing departure and retained clients

A good-standing departing Partner may propose selected clients it will continue to service. If approved by MCD, residuals continue only for those retained clients while they remain current and Partner continues documented service in CRM. Released or unserved clients become House Accounts and future residuals end.

8.4 Retirement and succession

A retiring Partner may propose an approved next-of-kin successor. The successor must register, complete onboarding and certification, use CRM, and follow MCD policy before servicing accounts. MCD may end retirement status, residuals, or succession arrangements in good faith for defined business reasons or client-protection needs.



8.5 Former Partner read-only access

A former Partner who remains eligible for retained-client residuals may receive a read-only CRM role limited to approved retained clients, commission dashboard, and meeting notes. It ends thirty (30) days after the final commission payout clears.

9. Confidentiality and Intellectual Property

Partner must execute and comply with the Confidentiality and Intellectual Property Agreement, incorporated by reference. A breach of that agreement is a breach of this Agreement.

No non-compete or non-solicitation covenant is created by this Agreement. MCD instead protects its business through confidentiality, IP, CRM/data restrictions, customer-record controls, and applicable law.

10. Indemnification and Limitation of Liability

Partner will indemnify and hold harmless MCD and its officers, owners, and representatives from claims, damages, penalties, and reasonable legal fees resulting from Partner's unauthorized statements, fraud, misconduct, data misuse, or violation of this Agreement or applicable law.

To the maximum extent permitted by law, MCD's total liability to Partner is limited to commissions actually earned and unpaid under this Agreement. MCD is not liable for indirect, incidental, consequential, or anticipated-income damages.

11. Disputes; JAMS Arbitration

The Parties will first provide written notice and attempt good-faith informal resolution.

Any unresolved civil dispute arising out of or relating to this Agreement will be resolved by individual binding arbitration administered by JAMS in Riverside County, California. Virtual participation is permitted. No class, collective, or representative action is permitted to the extent allowed by law.

MCD and Partner will split JAMS filing, administration, and arbitrator fees equally unless applicable law, JAMS rules, or the arbitrator requires another allocation. Each Party bears its own attorney fees unless applicable law or the final award provides otherwise.

Claims for injunctive or equitable relief to protect confidential information or intellectual property may be brought in court where permitted. Suspected criminal conduct, fraud, theft, or data misuse may be referred to law enforcement.

California law governs this Agreement without regard to conflict-of-laws rules.

12. Miscellaneous

This Agreement, its Exhibits, the Confidentiality and Intellectual Property Agreement, and approved customer/company policies form the Parties' agreement. If a conflict exists, the signed Agreement controls.

MCD may update future new-industry, package, or consultation pricing with at least thirty (30) days' notice. MCD may use ten (10) days' notice before a new customer's first payment for a new structure. Existing commission economics remain unchanged while the customer's contract pricing and structure remain unchanged; changes to package, price, scope, or contract structure adjust commissions accordingly.

Partner may not assign this Agreement. MCD may assign this Agreement in connection with a business transfer or operational need.

If a provision is unenforceable, remaining provisions survive. No waiver is implied by non-enforcement.



MCD may retain Partner profile, agreement, and related compliance/commission records for seven (7) years.

Signatures

COMPANY	SALES PARTNER
Charter Oaks Assets, Inc. d/b/a Mercury Call Desk	Legal Name / Business Name: _____
By: Hamilton Pinto Jr.	Verified Personal Email: _____
Title: Manager and Authorized Signatory	Signature: _____
Signature: _____	Date: _____
Date: _____	

Exhibit A - Published Partner Wholesale Schedule

Set	Tier	Published retail/month	Partner wholesale/month
Standard	Starter	\$1,595	\$1,000
Standard	Growth	\$1,995	\$1,250
Standard	Pro	\$3,995	\$1,500
Enterprise	Starter	\$5,295	\$2,500
Enterprise	Growth	\$7,595	\$3,500
Enterprise	Pro	\$9,995	\$5,000

Exhibit B - Client Service Cadence

Package	Phase 1	Ongoing
Starter	Biweekly for 2 weeks to 3 months	Monthly
Growth	Weekly	Biweekly or monthly based on client preference
Pro	Weekly	Guaranteed one-hour weekly session
Enterprise	Weekly	Guaranteed one-hour weekly session

Exhibit C - Approved Claim Standard

- Use: "We can show you a tailored demo and confirm what is practical for your workflow."
- Do not say: "You will become a millionaire," "You are guaranteed income," "It is fully compliant," "It will replace staff," "You will never miss a lead again," or any guaranteed revenue, savings, approval, outcome, or compliance statement.